

ASCII MASTER FLOW – PANEL 1/9: Three emergencies, three constitutional failures

PART XVIII: ARTICLES 352-360

- +-- Article 352 -> war, external aggression or armed rebellion
- +-- Article 356 -> State government cannot be carried on according to Constitution
- +-- Article 360 -> threat to financial stability or credit of India / any part

THE SAME WORD 'EMERGENCY' HIDES DIFFERENT RULES

trigger | advice | majority | duration | territorial effect | rights effect | revocation

CORE PURPOSE

preserve constitutional government in crisis, not replace limited government permanently.

ASCII MASTER FLOW – PANEL 2/9: Article 352 trigger, approval and revocation

IMMINENT DANGER MAY JUSTIFY PROCLAMATION

Cabinet decision in writing -> President -> proclamation for whole or part

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- +-- approval within one month
- +-- special majority in each House
- +-- renewal every six months
- +-- Lok Sabha disapproval mechanism and presidential revocation

44TH AMENDMENT CONTROLS

internal disturbance -> armed rebellion

written Cabinet advice + special majority + stronger Lok Sabha trigger

TRAP

Article 352 is not approved by a simple majority and is not indefinite without renewal.

ASCII MASTER FLOW – PANEL 3/9: National Emergency effects and historical evolution

EFFECTS

Union executive directions expand
Parliament gains State List competence while States continue
Article 354 may modify revenue-distribution operation
Lok Sabha and Assembly terms may be extended in one-year increments

HISTORY

1962 external aggression -> 1971 external aggression -> 1975 internal emergency

AMENDMENT ARC

38th immunity -> 42nd centralisation -> 44th review, liberty and procedure safeguards

VERDICT

emergency federalisation is temporary; constitutional identity and review survive.

ASCII MASTER FLOW – PANEL 4/9: Articles 358 and 359: rights firewall

ARTICLE 358

automatic operation

Article 19 only

war / external aggression only

emergency-related law nexus after 44th

ARTICLE 359

presidential order required

specified Part III enforcement

any Article 352 ground

order states scope and duration

PERMANENT LIBERTY CONTROL

Articles 20 and 21 cannot be suspended through Article 359.

CASE ARC

ADM Jabalpur (1976) majority denied habeas route -> Khanna dissent

-> K.S. Puttaswamy (2017) rejects the majority's constitutional approach.

TRAP: rights are not 'abolished'; enforcement and legal consequences must be stated precisely.

ASCII MASTER FLOW – PANEL 5/9: Article 356 mechanics and constitutional consequences

GOVERNOR REPORT OR OTHERWISE

objective material -> President's proclamation -> parliamentary approval within two months

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+-- six-month periods

+-- maximum three years

+-- beyond one year: Article 352 emergency condition + ECI certification condition

CONSEQUENCES

President assumes State executive functions

Parliament exercises State legislative power

High Court powers cannot be assumed

FLOOR PRINCIPLE

loss of majority is ordinarily tested in the House, not decided by private assessment.

ASCII MASTER FLOW – PANEL 6/9: S.R. Bommai (1994), judicial review and the misuse debate

S. R. BOMMAI (1994) CONTROL BOARD

federalism is Basic Structure

Article 356 satisfaction is reviewable

Union must disclose relevant material

majority ordinarily tested on the floor

Assembly dissolution should await parliamentary approval

court may restore the dismissed government / Assembly

secularism is Basic Structure

RAMESHWAR PRASAD (2006)

pre-emptive dissolution based on speculative horse-trading material invalid.

WHY USE DECLINED

judicial review + coalition era + regional parties + political cost + commission norms.

ASCII MASTER FLOW – PANEL 7/9: Article 360: financial emergency without fabricated history

TRIGGER

financial stability or credit of India or any part is threatened

PROCEDURE

President -> parliamentary approval within two months -> simple-majority control
once approved, no six-month renewal cycle is prescribed

POSSIBLE DIRECTIONS

financial propriety canons
salary / allowance reduction, including judges
State Money and financial Bills reserved for presidential consideration

STATUS CONTROL

India has never proclaimed a Financial Emergency.
Do not convert economic stress, Article 293 conditions or fiscal rules into Article 360.

ASCII MASTER FLOW – PANEL 8/9: Comparison matrix, alternatives and commission safeguards

ARTICLE 352

ARTICLE 356

ARTICLE 360

national security	State constitutional failure	financial stability / credit
special majority	simple majority	simple majority
six-month renewal	six-month renewal	no periodic renewal in text
rights consequences	State machinery effect	fiscal directions

LAST-RESORT LADDER

warning -> consultation -> floor test / judicial remedy -> targeted ordinary law
-> emergency only when constitutional preconditions are met

SARKARIA / PUNCHHI

speaking material, neutral Governor, floor test, restrained and localised response.

ASCII MASTER FLOW – PANEL 9/9: PYQ traps and the emergency answer spine

PRELIMS CONTROLS

armed rebellion != internal disturbance

Article 358 != Article 359

Articles 20-21 remain protected

Article 356 extension conditions apply after one year

Article 360 has never been used

PYQ ROUTES

2018 financial emergency | 2018 Article 356 | 2023 security provisions

2023 decline of Article 356 use | supporting 2020 centralisation

MAINS SPINE

state trigger -> procedure -> effect -> 44th safeguard / S.R. Bommai (1994)

-> misuse risk -> alternative -> emergency power remains exceptional and reviewable.